

# STATE OF NEW YORK

7633--A

2025-2026 Regular Sessions

## IN SENATE

April 24, 2025

Introduced by Sen. HOYLMAN-SIGAL -- read twice and ordered printed, and when printed to be committed to the Committee on Judiciary -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the New York city civil court act, in relation to actions and proceedings seeking an abatement of rent based on violations of the housing maintenance code or the warranty of habitability

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision (a) of section 110 of the New York city civil  
2 court act is amended by adding a new paragraph 10 to read as follows:

3 (10) Actions and proceedings seeking an abatement of rent based on  
4 violations of the housing maintenance code, applicable housing stand-  
5 ards, building code, health code or section two hundred thirty-five-b of  
6 the real property law. Such abatements shall be granted beginning at the  
7 time when the violation commenced until the violation is corrected. For  
8 the purposes of this provision, "violation" shall mean any condition  
9 that would give rise to a violation of the housing maintenance code,  
10 applicable local and state housing standards, the building code, the  
11 health code, or the multiple dwelling law.

12 § 2. Section 110 of the New York city civil court act is amended by  
13 adding a new subdivision (r) to read as follows:

14 (r) (1) Abatements shall be calculated based on the diminished value  
15 of the premises during the period of the breach as follows:

16 (i) For each non-hazardous violation, not less than twenty percent of  
17 the rent;

18 (ii) For each hazardous violation, not less than thirty percent of the  
19 rent; and

20 (iii) For each immediately hazardous violation, not less than sixty  
21 percent of the rent.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

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1 (2) The court may, in its discretion, grant a greater abatement than  
2 that anticipated by the minimum standards in paragraph one of this  
3 subdivision on account of the duration of the diminution in value and  
4 the severity of the violations.

5 (3) For any violation for which the provisions in paragraph one would  
6 not apply, the abatement granted shall equal the difference between the  
7 rent reserved under the lease and the value of the premises during the  
8 period of the breach.

9 § 3. This act shall take effect on the ninetieth day after it shall  
10 have become a law.